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Electronically FILED by Superior Court of California, County of Los Angeles 4/22/2026 4:25 PM David W. Slayton, Executive Officer/Clerk of Court, By D. Diaz, Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – CENTRAL DISTRICT

FOX NORMANDIE APARTMENTS, LP Plaintiff, vs. **DERRICK L. BEVERLY**, an individual; and DOES 1 to 5, Defendant	Case Number: **22 STUD 06657** **NOTICE OF RULING RE DEFENDANT'S MOTION TO SET ASIDE/VACATE DEFAULT AND DEFAULT JUDGMENT** **Dept.:** 91 **MTSA Hearing:** April 22, 2026

TO DEFENDANTS AND TO THEIR COUNSEL OF RECORD, IF ANY:

PLEASE TAKE NOTICE that the Court heard Defendant's Motion to Set Aside the Default and Default Judgment on April 22, 2026, at 8:30 a.m. Counsel for Plaintiff, Law Offices of Ada R. Cordero-Sacks, appeared via LACourtConnect. There were no appearances by or on behalf of moving party Defendant. Defendant's motion was DENIED. A true and correct copy of the Court's Minute Order is attached hereto as "**Exhibit A**." Plaintiff give Notice.

DATED: April 22, 2026

Respectfully submitted,

BY _____
Tracey L. Merrell, Esq.
Attorney for Plaintiff

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EXHIBIT A
APRIL 22, 2026 MINUTE ORDER

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 April 22, 2026
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 8:30 AM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): No Appearances

NATURE OF PROCEEDINGS: Hearing on Motion to Set Aside/Vacate Default and Default Judgment (CCP 473.5)

The matter is called for hearing.

By 9:28 AM, the Court confirmed with the Judicial Assistant that no appearances, either remote or in-person had been made by or for Defendant(s).

The Court has read and considered all documents filed herein connection regarding Defendant Derrick Lamont Beverly's Motion to Set Aside/Vacate Default and Default Judgment.

Counsel for Plaintiff appears in opposition.

The Court issues an Oral Tentative Ruling.

Plaintiff submits on the Court's Tentative Ruling.

After reading and considering all moving papers filed in support and opposition, the Court adopts its Tentative Ruling as the Final Ruling as follows:

The Motion to Set Aside/Vacate Default and / or Default Judgment filed by Derrick L. Beverly on 03/24/2026 is Denied.

Relief pursuant to Code of Civil Procedure § 473(d) is denied because Defendant has not offered sufficient or credible evidence to rebut the testimony of Plaintiff's registered process server regarding personal service of the summons and complaint on him on October 27, 2022. (Evid. Code § 647 ["The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the

return."]; Palm Property Investments, LLC v. Yadegar (2011) 194 Cal.App.4th 1419, 1428 ["The effect of a presumption affecting the burden of producing evidence is to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its nonexistence. . ."].)

The court cannot grant any relief pursuant to Code of Civil Procedure §§ 473(b) or 473.5 because more than three years have passed since judgment was entered against Defendant.

The court also finds that Defendant has not presented sufficient evidence that warrants exercise of the court's inherent authority to set aside default judgments entered due to extrinsic fraud or mistake. Defendant has not offered sufficient evidence of any meritorious defense to this action or evidence to suggest that the default was entered due to some extrinsic mistake or fraud. (See In re Marriage of Stevenot (1984) 154 Cal.App.3d 1051, 1074 ["A party who seeks to set aside a default judgment pursuant to the court's equity power must make a substantially stronger showing of the excusable nature of his or her neglect than is necessary to obtain relief under Code of Civil Procedure section 473."].)

Moreover, defendant has sought relief from the 11/29/2022 default judgment on numerous occasions prior to today by way of ex parte applications and motions, and all have been denied. This motion is therfore, in essence, a motion seeking reconsideration of the court's prior rulings denying defendant's sought after relief, subject to Code of Civil Procedure § 1008(a). Considering the motion as such it must be denied, as Defendant has not submitted an affidavit or declaration stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." Moreover, it fails on its merits. A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499.) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Id.) That a party believes the court misinterpreted the law is not grounds for seeking reconsideration. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.) Moreover, there is a strict requirement of diligence, which means the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) The burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212–213.) The motion is not based upon any new or

difference facts, circumstances, or law; judgment was entered over three years ago and has since become final, therefore any motion for reconsideration is denied.

Counsel for Plaintiff to give notice.

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PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, CA 91304

On **April 22, 2026,** I served the foregoing document described **NOTICE OF RULING RE DEFENDANT'S MOTION TO SET ASIDE/VACATE DEFAULT AND DEFAULT JUDGMENT** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK L. BEVERLY
1929 Wilcox Avenue, Apt. #1
Hollywood (City of Los Angeles), CA 90068
Email: dernierCrilamont@yahoo.com

[X] [BY MAIL] Pursuant to CCP § 1013(a) and under firm practice said envelope would be deposited with the U.S. Postal Service on the same day with postage thereof fully prepaid at West Hills, California in the ordinary course of business. I am readily familiar with the Law Offices of Ada R. Cordero-Sacks ordinary business practice of collection and processing correspondence for mailing. I followed this business practice, and I placed the envelope for collection and mailing on the date identified above. I am aware that on a motion of the party served, service is presumed invalid if postage cancellation date or postage date is more than one day after date of deposit for mailing in affidavit. I deposited such envelope in the U.S. mail at West Hills, California.

[ ] United States Postal Service Next Day Shipping

[ ] [BY PERSONAL SERVICE] I caused our process server to deliver such envelope by hand to the address above.

[X] [ELECTRONIC SERVICE] I caused said document(s) to be transmitted to the email address(es) of the addressee(s) designated.

[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct

DATED: April 22, 2026



Karina Medina